STATE OF NEW YORK
COUNTY OF WESTCHESTER: YONKERS FAMILY COURT
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IN THE MATTER OF:

TARA KATELYN WALSH, FILE NO: 154703
DOCKET NO.: V-07641-18
Petitioner, O-12635-19

- vs. -

STEPHEN GRANT RUSSELL,
Respondent.
----------x
STEPHEN GRANT RUSSELL, DOCKET NO.: O-01070-21
Petitioner,

- vs. -

TARA KATELYN WALSH,
Respondent.
----------x
Virtual Proceeding
131 Warburton Avenue, Third Floor
Yonkers, New York 10701
June 1, 2021

BEFORE: HONORABLE MICHELLE I. SCHAUER, Part 17

APPEARANCES: CHRISTOPHER SCOTT WEDDLE, ESQ.
Attorney for Tara Walsh

MASSIMO DIFABIO, ESQ.
Attorney for Stephen G. Russell

JENNIFER MARIE JACKMAN, ESQ.
Attorney for the child

ALSO PRESENT: Tara Katelyn Walsh, Petitioner/Respondent
Stephen Grant Russell, Respondent/Petitioner

Digital Recorded Proceeding, Valeri Wilson, Transcriber

Public copy: the child's legal name is shown as E.V.; a private street address is removed. Otherwise unchanged.

(3:23:13 p.m.)

COURT OFFICER: Good afternoon, Your Honor, this is Yonkers Family Court, Part 17, this is cases 3 through 5 on the court's calendar, file number 154703 in the matter of Russell and Walsh. Counsel, please state your appearance for the record starting with Mr. Weddle.

MR. WEDDLE: Chris Weddle, Timko and Moses, 1 North Broadway, White Plains, appearing for Tara Walsh, good afternoon, everyone.

COURT OFFICER: Good afternoon. Mr. DiFabio?

MR. DIFABIO: Max DiFabio for Mr. Russell, good afternoon, Your Honor.

COURT OFFICER: Ms. Jackman?

MS. JACKMAN: Good afternoon, Your Honor, Jennifer Jackman, attorney assigned to represent the child [redacted]

COURT OFFICER: Thank you. Ms. Walsh, please raise your right hand. Do you solemnly swear or affirm to tell the truth?

MS. WALSH: I do.

COURT OFFICER: Please state your name and address for the record, unless confidential.

MS. WALSH: My name is Tara Walsh and my address is confidential.

COURT OFFICER: And, Mr. Russell, please raise

your right hand. Do you solemnly swear or affirm to tell the truth?

MR. RUSSELL: I do.

COURT OFFICER: Please state your name and address for the record, unless confidential.

MR. RUSSELL: Stephen Grant Russell, [redacted], San Francisco, California, 94 -- what's the zip code?

THE COURT: Did you get the whole zip code?

MR. RUSSELL: 94109, yeah.

THE COURT: Thank you. Before we begin, I'd like to remind you that the rules of the chief judge provide that recording, broadcasting, or streaming court proceedings is not permitted. Court is making the only official record (inaudible) in violation can be prosecuted. We're here for a conference.

We were last in court on May 19th. As a result of that conference, the Court issued a temporary Order of Custody and Visitation for Mr. Russell. My understanding is that the visits, which were supposed to be supervised by Jennifer Cully (ph) did not occur. We have had a lengthy attorneys' conference, and I believe we have a framework for a new order moving forward. Does anyone want to begin?

MR. DIFABIO: Yes, Your Honor. With respect to my client's position, Judge, my client envisioned that his

mother would visit with the child every Monday, Tuesday, and Wednesday initially for two-hour increments, moving to four, then to eight. At such times that my client, excuse me, my client's mom would be with the child on those days, my client would have FaceTime access with the child to be supervised or facilitated by Ms. Jennifer Cully on those dates and times with an eye towards, perhaps in the third week, Judge, my client being permitted to fly into New York, spend those hours with the child, Grandma, and Ms. Cully via FaceTime, and that was the offer conveyed to me by my client and I conveyed that to Mr. Weddle and Ms. Jackman.

THE COURT: Okay. And we did discuss that and it's my understanding that those times were not convenience -- or at least during the daytime -- for Ms. Walsh. Mr. Weddle?

MR. WEDDLE: That is correct, Your Honor. What we would propose is that on alternating weekends that the grandmother be afforded three hours on Saturday and three hours on Sunday of visitation with Evie (ph). During that time, they could also FaceTime with Mr. Russell and Jen Cully would be present during those FaceTime meetings. We would ask those -- those visitations take place in the town of New Castle, that they be local. We'd like to know where the child is during those visits.

In addition, we'd like 24-hour confirmation that, in fact, Ms. Russell, Mr. Russell's mother was, in fact, planning on coming to New York and keeping those visits. We would ask that Ms. Walsh at least initially because it's been awhile since Ms. Russell has had contact with Evie, so Ms. Walsh would like to be present at the beginning just to make sure that Evie is comfortable with her grandmother at least initially. And that's what we're proposing.

We would also ask that Mr. Russell not be physically -- we'd ask for an order that Mr. Russell not be physically -- be present for any of these interactions between Evie and her grandmother.

THE COURT: Mr. DiFabio?

MR. DIFABIO: Judge, when -- going back in time when Judge Horowitz issued her order, with respect to Grandma visiting with the child, it was proffered then by Ms. Walsh's then attorney that Ms. Walsh be permitted to stay for the visit. Judge Horowitz denied that and said it's fine if you want to observe from afar, but you can't stay there during the visit. Mom and Grandma -- Grandma and the child need to get acquainted. It's okay if she cries. She'll get used to it. So I would oppose Ms. Walsh being present for the visit because it would defeat the purpose. And, again, Judge, based on Ms. Walsh's representation, last time, it appears from her words that

the child and the grandmother are acquainted. So I don't think that there's a need for that.

With respect to New Castle, Judge, I don't see Grandma taking the child far from the local area so I don't see that as an issue. However, my client may have an issue with the every other weekend. What he was proposing was every Monday, Tuesday, and Wednesday which makes sense because Ms. Walsh's mother is babysitting the child anyway. So and if it's a question of to and from, I think we can work that out but I don't think Monday, Tuesday, Wednesday is unremarkable.

THE COURT: Mr. Weddle?

MR. WEDDLE: Judge Horowitz' comments came over a year ago. My understanding is during the course of the pandemic there's been minimal contact between Ms. Russell and Evie and that is my client's concern. With respect to having my client's parents facilitate this in any way, shape, or form, as the Court is aware, they are sort of getting tired of being sued by Mr. Russell. There's been a lot of -- there's been a flurry of litigation outside of this courthouse and my client is unwilling to put them in that position at this time nor would I think that they would want to.

I mean, 2 -- I couldn't do 2 to 4 three days a week in the middle of the week. I mean, I have -- I have a

job. And so does Ms. Walsh. This seems very reasonable to me on the weekends. It's an introduction. I assume they'll be back here in the not-too-distant future to revisit this. I would, however, like to hear from Ms. Jackman, if the Court doesn't mind.

THE COURT: Go ahead, Ms. Jackman.

MS. JACKMAN: I was just going to say that the weekends are a start. I think it's easier and more predictable and it's -- it's a starting point and maybe Monday, Tuesday, Wednesday is too much to jump into all at once after all this time, so I think alternate weekends, a couple of hours per day with a gradual increase is probably best.

THE COURT: All right. So why don't we start with the every other weekend for three hours on Saturday and three hours on Sunday and then when we pick the date to come back for the conference, we'll see how far out that is --

MR. RUSSELL: I don't believe my mother's available on the weekends.

THE COURT: Okay. Mr. DiFabio?

MS. JACKMAN: So if we're doing it on a Monday, Tuesday, or Wednesday, Max, what time would she be able to come in because Tara does go to work and she's the one that needs to facilitate the pickup -- the transfers of the

child?

MR. DIFABIO: Steve, would you and Linda be amenable to doing it from 5 to 7, I think was an hour (inaudible) earlier. Would that be okay, 5 to 8?

MR. WEDDLE: No, I think we've offered a couple things so, yeah, my mom is flexible during the workday. You know, she's almost 70 years old and so she's asked for that but she could pickup, you know, Evie in the morning and half-day, arrange for Evie to be dropped back off through a sitter if there's some tension. You should know that the Walshes spoke to my mother and very strongly stated they would never allow the visits to happen. And even went so far to say that any orders from this Court would be put in the trash, so it was very, very tough and very clear.

THE COURT: That's something that can easily be dealt with, if that's what happens. There are consequences for violating court orders, but let's -- let's not go down that (inaudible). Mr. --

MR. RUSSELL: May I make one more comment on scheduling, Your Honor? Just very quickly. We're in a -- the trial for the battery case in San Francisco. Starts in one week, and so this is -- with respect to my scheduling, I -- we're going to be in court and moving forward in San Francisco, I believe starting on June 7th or June 8th, and

you know we're going to have to -- you know, that'll obviously affect my schedule.

THE COURT: Right, and it is difficult when you're dealing with a three-hour time difference. Ms. Walsh, do you have a regular work schedule?

MS. WALSH: Yeah, I do, and Evie does, too. You know, she's being potty-trained now. She has swim classes coming up. She has different art classes in the summer. She's starting nursery school in September which is going to be five days a week.

I can tell you that, you know, when I have spoken with Linda Russell (ph) she has -- the last time she visited Evie was on a weekend. I do think she's available on the weekends. I think it's -- she doesn't work. She's retired. And she's spoken to me about coming on the weekends before including this prior weekend that she wanted to come. So I think it's -- it's a little unreasonable to say she can't come any weekends. It's very, very hard for me to like rearrange my entire schedule during the week. I go into the city all the time. I have different meetings. It's -- it's very hard for me to do three days in a row during the work day. I mean, I would be jeopardizing my business and income if I did that.

THE COURT: When do you go into the city?

MS. WALSH: I go into the city like three days a

week now. It depends. I've been working. I have a variety of different clients in the city. One of those clients has asked that I go into their office regularly every week. And then I'm gradually -- before I was going to the city, you know, three to five days a week, so I'm working on that to work out of New York again in Midtown.

THE COURT: What time do you start?

MS. WALSH: I generally start around 9 and I go, you know, depending on the day but even if I'm working from home, I'm in front of my computer. I have my clients calling. I'm doing meetings. I'm not like, just because -- when I do work from home it's not like -- I don't have a normal job. You know, I'm accountable. I have to be working all day.

THE COURT: So maybe we could do a one day a week where you could just transfer Evie to Ms. Russell before you go to work and she can just keep her that day so your parents don't have to deal with the transfer.

MS. WALSH: For the entire? Okay.

THE COURT: Yeah, I mean, there's -- there's endless possibilities as to how this can be arranged, and really the bottom line here is, if you don't agree, I'm going to just make up a schedule that sounds fair to me and it will probably inconvenience one or maybe all of you. It will be a court order, and the only way you will be able to

revise it is if you all consent, which seems to be a problem in this case. But I started this conference at 2:00. It's (inaudible) hour and a half, and I don't feel like we've made much progress. And I'm not quite sure how you want to leave it. I mean, I can issue an order right now on the record that sounds relatively fair to me as I said, and then just leave it to you. If you want to change it to do any change in writing. I don't think that's going to make everybody happy but when, you know, one side proposes something and the other side rejects it and then proposes something, the first side rejects it, it's hard to work out something that everybody can (inaudible).

MR. DIFABIO: Your Honor, I think my client would live with your order. Steve, am I correct in saying that?

MR. RUSSELL: Yeah, subject to my mother's schedule and whatnot.

MR. DIFABIO: Well, it's not going to happen that way.

MR. RUSSELL: I'll try to be -- I mean, it's -- I follow court orders, so I respect (inaudible).

MR. DIFABIO: All right. Steve, so you know, the judge is not going to entertain your argument or Tara's. She's going to do what she thinks is fair and reasonable regardless of anyone's schedule unless you and Tara are willing to come to a compromise. That's what the judge is

saying.

MR. RUSSELL: I -- you know, I'd love to continue the discussion offline. I wasn't -- I didn't get to participate in the discussions you all had and I know probably Your Honor is curious as to what happened, you know, over the course of the week to derail the past visits and, you know, I think based on that I would certainly welcome any thoughts you had on, you know, getting things moving again. We've had a really tough time.

THE COURT: Well, at this point, I think we should pick an adjourn date so I can see what period of time we're dealing with. And when I know that time frame, it'll be easier to come up with some kind of order that will be an interim order.

MS. JACKMAN: I was thinking if it has to be done during the week, maybe we could -- Ms. Walsh could just have one set day that she works from home, that way she would be there to do the transfer.

MR. DIFABIO: That may be up to the clients.

MS. WALSH: I mean, if it's -- again, it's like I'm on a schedule. Evie's on a schedule so if it's something that's scheduled that I know that I can, you know, not schedule meetings on or not go into the city for that would be extremely helpful just for, you know, the consistency like Jennifer said.

THE COURT: So does that work better for you if we just pick one day during the week so every other Wednesday -- every Wednesday then you would know -- I'm just throwing out Wednesday, it could be any day of the week, then you would know that you would have to transfer Evie to Ms. Russell and then she would work it out with you to return Evie whenever your work day is over, 5:00 or whatever time that is and then we'll see how that goes. She'll have a good chunk of time and eventually we're hoping to segue this to Mr. Russell having these visits. I know maybe he's not coming in every week from California but it would be typical certainly for a parent to have extended visits with the child.

MR. RUSSELL: I would love that, Your Honor. I think it's about a six-and-a-half-hour drive from Punxsutawney, Pennsylvania where my mom is coming from, so the one day a week I know has been tough and she's more than happy to do and just act and provide free childcare for Evie during an eight-hour day. She's a lovely woman, a nurse, you know, sent two kids to Stanford. She's taken care of my nieces and nephews, I'm sure she would do an excellent job watching Evie during the day and, you know, at two to three days a week, I think it makes sense for her to get in the car and drive, you know, six-and-a-half hours one day and six-and-a-half hours the other way.

THE COURT: But she spends the night in Westchester, is my understanding?

MR. RUSSELL: Well, the last time she drove out and then she got here and was told to drive home and then she drove home, and then she got home and said she could have 20 minutes that day if she drove back out. So she left a little bit just exasperated at that. She, you know, she really, you know, she's offered really earnestly to come out and provide childcare for Evie (inaudible).

THE COURT: So I think what would be best for everyone here is to have a specific schedule so that we don't leave it up to as arranged between the parties because at some point it just becomes easier down the road if there's further litigation for there to be a court order saying certain time and certain day and then to prove who -- where the gap was if it wasn't complied with. So if she's -- if she's willing to come out and have one full day of a visit, then what was proposed before was three days, three days, three consecutive days for two hours a day. I don't know if that, you know, that's six hours of visits over three days. Maybe it's better to have one 8-hour or 9-hour or 10-hour day.

MR. RUSSELL: I would think so if that's what we get, you know, are certainly going to take it. I would ask that maybe we do two days. It would just kind of, I think,

make it easier on her. And also, you know, once -- my mom really could do a wonderful job and I think once everybody sees that it's just a fine situation, a lot of this kind of energy and angst that causes these delays and stuff will fade away and we can get past this.

THE COURT: All right. I have time on June 25th.

MR. WEDDLE: It would depend on the time, Your Honor.

THE COURT: I have a lot of time on that day. Ms. Jackman? Mr. DiFabio?

MR. DIFABIO: I'm wide open the 25th. It's a Friday, right, Judge?

THE COURT: Yes.

MR. DIFABIO: Yes, wide open.

MS. JACKMAN: 2:00? I have a 9:30.

THE COURT: I have a 9:30 and a 2:00 right now so any other time.

MS. JACKMAN: Okay. So any time after 9:30, Judge.

MR. DIFABIO: Want to do 11, Judge? Chris, are you okay at 11?

MR. WEDDLE: Yeah, I'm in front of Judge Horowitz at 10:30 but should be done by 11.

THE COURT: All right. So let's say June 25th at 11:00. So that's not very long. What day of the week is

best for you, Ms. Walsh?

MS. WALSH: A Thursday is probably best.

THE COURT: Okay. And before you start work, so what? Like 8:30?

MS. WALSH: Yeah, 8:30. I guess like the logistics. I would like to be able to drop her off because I have like her car seat and stuff. I just think that would be easier, time wise for me. And then, you know, probably pick her up around 5:30, 6?

THE COURT: Okay. And is the transfer going to be at the Kittle House?

MS. WALSH: The Kittle House would be fine, yeah, I would just again like to be able to know where Evie was and have a contact number that I can call and, you know, just be able to --

THE COURT: Well, you have Grandma's number, correct?

MS. WALSH: Yeah, I have Grandma's number but just make sure that, you know, I would just like to know where she is and if she could stay within New Castle, like we said, you know, the general town that would certainly make me feel comfortable.

THE COURT: All right. Is there something to do in New Castle?

MR. WEDDLE: Oh, yeah, we have parks.

MR. DIFABIO: Judge, I think Westchester would be sufficient.

MR. RUSSELL: Mom loves the Kittle House. It's fine but sometimes they don't have rooms and so if there could be, you know, just another hotel or Airbnb we'd get in the area, you know, we would certainly let everybody know where Evie is and you know contact information and whatnot.

THE COURT: Okay. At this point, because we're only dealing with a few weeks, I'll just at this point stay that she is to stay within New Castle but I don't think that's really going to be reasonable moving forward. So paternal grandma will have visits with Evie every Thursday from 8:30 a.m. to 5:30 p.m. Pickup and drop off will be by Ms. Walsh at Grandma's hotel. Grandma to confirm 24 hours in advance, especially given that Ms. Walsh is not going to know necessarily where she's staying.

There shall be no tape recording of any of these visits. I understand she will want to take some photographs. There's to be no public dissemination of any photos or videos that may have been taken in the past. Grandma may facilitate FaceTime access with Dad. That will be supervised also by Jen Cully or observed by Jen Cully. Mr. Russell shall not be physically present.

This is to be the schedule that remains in place

unless everyone agrees in writing. Did I cover everything?

MR. DIFABIO: Just a commencement date, Your Honor, of the visit.

THE COURT: Well, I leave that up to Ms. Russell. If she can be in by this Thursday, it can start. Yeah. Why don't we have it start June 3rd.

MR. DIFABIO: Steve, will she be in town or is she going to be away?

MR. RUSSELL: So this is an order for my mother's visits on Thursdays, what we just went through and, you know, I of course, will have to talk to her after this. I assume she'll move heaven and earth to make it work, Your Honor. And myself as well.

THE COURT: Right, yeah, I mean, it's obviously it's much easier when the parties can work with each other and have flexibility but I think that at this point in the case tensions are still too high and -- and it's just hard to come up with a court order when everybody disagrees with the proposals. But I hope that you'll think about possible situations moving forward and maybe when we come back June 25th we'll be able to put a new schedule in place.

Your mother is certainly, Mr. Russell, welcome to be present on this call because if we're talking about her schedule I think it might just make sense for her to be here. And then we could accommodate her schedule.

MR. RUSSELL: (Inaudible) order that we don't -- sorry about that, I didn't mean to talk over but one of our concerns is that the Walshes have been kind of a silent party in this and they -- they really do quite aggressively ignore and prevent these visits. And one of the reasons that I think we're tiptoeing around the schedule of the full day is that the Walshes won't approve of it or they can't be aware of it. And it's (inaudible) it's difficult --

THE COURT: Okay. (Inaudible).

MR. RUSSELL: -- enough.

THE COURT: Mr. Russell, this is a court order at this point, so the Court (inaudible) violations of court orders have consequences, and I'm not quite sure what the Walshes -- why they should have anything to do with this but there's consequences if people violate my court order, and so I'm hoping that this will go smoothly and if not, if we need to tweak this when we come back, we'll do that but I expect that this will happen the way I'm ordering it.

MR. RUSSELL: Okay. Well -- what is the process, Your Honor, of looping in my mother?

THE COURT: Every Thursday again -- every Thursday 8:30 a.m. to 5:30 p.m., pickup and drop off by Ms. Walsh at Ms. Russell's hotel. Ms. Russell must confirm with Ms. Walsh 24 hours in advance so Ms. Walsh knows where

to pickup Evie. Grandma to stay in New Castle. She is not to tape record. There is to be no public dissemination of any photos or any videos that are already in existence or any photos that are in existence or may be taken, and Mr. Russell is not to be physically present. However, his access to Evie will be supervised by or facilitated by Grandma as well as Jen Cully on FaceTime. You're not to be present. Okay? So I don't know if you want to order the transcript, it's so ordered. If someone wants to make a little interim order on the basis of what I just said. I have another matter that I have to attend to at this point. Yes, Mr. DiFabio?

MR. DIFABIO: Judge, one quick caveat, I know you have to go. In the event that the Kittle House is unavailable, then the New Castle restriction won't be effective so we can say or in the geographic location of her hotel to be in Westchester, of course.

THE COURT: Yes, good point.

MR. RUSSELL: My visits will be denied again, unfortunately, but I (inaudible).

THE COURT: Well, okay, I can't -- Mr. Russell, I understand what you're saying and, again, I understand there's hostilities here but if the visits --

MR. RUSSELL: Not on my part.

THE COURT: -- I know, but there will be

consequences.

MR. RUSSELL: There never have been in the past, Your Honor. The police report is that I threatened to kill my daughter.

THE COURT: But can you have --

MR. RUSSELL: And she said it was a lie. There were no consequences.

MS. WALSH: It's very -- it's very unfair that he's going on and on about this stuff because it's just not reality. So --

MR. RUSSELL: I've never seen consequences (inaudible).

THE COURT: Okay. When I -- but you've not had me as a judge before so --

MR. RUSSELL: Fair enough.

THE COURT: -- I expect that my court orders will be followed. I expect that there will be consequences to those who don't follow my court order, so if this court order is not followed, there will be consequences. It's a little difficult because you're in California but we'll deal with it. So I will see you all June 25th at 11:00. Does someone want to submit an order or you want to do it by the transcript?

MR. DIFABIO: Transcript, Jen? Chris?

MR. WEDDLE: (Inaudible) expedited right now.

MR. DIFABIO: Okay, thank you (inaudible).

MS. JACKMAN: That's fine.

THE COURT: Ms. Jackman, are you in agreement with this interim order?

MS. JACKMAN: Yes, Judge, I am.

MR. RUSSELL: I'd like to see a written order.

THE COURT: Okay. All right. So someone will submit a written order and I'll sign off on it. Thank you.

MR. RUSSELL: Thank you.

MR. WEDDLE: Thank you, Judge.

THE COURT: Bye.

(3:50:07 p.m.)[PROCEEDING CONCLUDED]

CERTIFICATE: I, Valeri Wilson, certify the foregoing transcript of proceedings held at Yonkers Family Court, NYS, T. Walsh vs. S. Russell, File #154703, was prepared using the required electronic equipment and is a true and accurate record of the proceedings.

Signature: Valeri Wilson Date June 9, 2021

Electronic signature

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